

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Shahid Waheed
Justice Naeem Akhter Afghan
Justice Shakeel Ahmad

Civil Appeal No. 1151/2025, C.M.A. No.14373/2025, Civil Appeal No.1152/2025 and C.M.A.No.14395/2025.
(On appeal against the order/judgment dated 24.11.2025 passed by the Election Tribunal, Balochistan, Quetta, in Election Petition No.33/2024)

Khushal Khan Kakar (in CA No. 1151/2025
& CMA No. 14373/2025)

Syed Sami Ullah (in CA No. 1152/2025 & CMA
No. 14395/2025)

...Appellant(s)

VERSUS

Election Commission of Pakistan through
the Secretary, Islamabad and others (in
both cases)

...Respondent(s)

For the Appellant(s) : Mr. Salman Akram Raja, ASC.
(in CA No.1151/2025 & CMA No.14373/2025)

Mr. Kamran Murtaza Sr. ASC
(in CA No.1152/2025 & CMA
No.14395/25 with Appellant (in-person))

Syed Rifaqat Hussain Shah, AOR

For the Respondents : M/S Muhammad Arshad, Special
Secretary (Law), Yasir Ali Raja,
Director (Law), Jaffar A.D (Law), (for
Respondent No.1-ECP in both cases)

Mr. Kamran Murtaza, Sr. ASC (for
Respondent No.2 in C.A.No.1151/2025 &
CMA No.14373/2025)

Mr. Salman Akram Raja, ASC, along
with Syed Rifaqat Hussain Shah,
AOR (for Respondent No.2 in
C.A.No.1152/2025 and CMA
No.14395/2025)

Date of Hearing : 27.02.2026

JUDGMENT

SHAKEEL AHMAD, J.- We propose to decide the titled appeals by a common judgment, as not only the questions of law and facts involved in these appeals are identical, but they also arise from one and the same judgment dated 24.11.2025 ("**the impugned judgment**") of the Election Tribunal Balochistan, Quetta ("**the Tribunal**"), whereby the Election Petition filed by Khushal Khan Kakar, the Appellant/Respondent No.2 in connected Appeal No.

1152/2025 (to be referred hereinafter as "**the Appellant**"), was partly allowed, directing the Election Commission of Pakistan ("**ECP**") to conduct re-poll at 22 disputed polling stations.

2. The relevant facts forming the background of these appeals are that the Appellant contested the General Election, 2024, from NA-251, Sherani-cum-Zhob-cum Killa Saifullah. In the said contest, Syed Sami Ullah, Respondent No.2/Appellant in the connected appeal No.1152/2025 (to be referred hereinafter as "**the Respondent**"), was declared as a Returned Candidate by the ECP for the said Constituency, vide Notification bearing No. F.2(5)/2024-Cord (7) dated 18.02.2024 ("**the impugned Notification**"), having secured 46,210 votes against the Appellant's 46,117 votes. The Appellant challenged this Notification before the ECP through various applications and petitions. While those proceedings were pending, he filed an Election Petition before the Tribunal, which, by the impugned judgment, was partly allowed in the following manner:

"In a nutshell, the contravention of aforementioned sections of the Elections Act, 2017 and Rules of the Election Rules, 2017 has been established; therefore, in exercise of jurisdiction under Section 156(2) of the Elections Act, 2017, the election of respondent No. 2/ returned candidate is hereby declared void. The notification declaring respondent No.2 as the returned candidate from the Constituency NA-251, Sherani-cum-Zhob-cum-Killa Saifullah, is set aside, and the Election Commission of Pakistan is directed to denotify respondent No.2 accordingly. Furthermore, the Election Commission of Pakistan is directed to conduct a repoll at the 22 disputed polling stations of Constituency NA-251, Sherani-cum-Zhob-cum-Killa Saifullah. The petition stands partly allowed."

Aggrieved by the said decision, both parties have approached this Court by filing their separate appeals.

3. We have heard learned ASCs for the parties and Mr. Muhammad Arshad, Special Secretary Law, Yasir Ali Raja, Director Law, and Jaffar, Assistant Director Law, Election Commission of Pakistan, and examined the record with their valuable assistance.

4. From the record, it transpires that the Appellant has called into question the impugned Notification whereby the Respondent was declared as a Returned Candidate on the basis of

the consolidated results reflected in Form-48 prepared by the Returning Officer ("**RO**"). The gravamen of the Appellant's grievance is that, in the course of preparing the said Form-48, the RO altered the vote count recorded in Forms-45 prepared by the Presiding Officers ("**POs**") of the respective polling stations. While the subject matter of the instant petition initially encompassed the vote count across twenty-two polling stations, the learned counsel for the parties have, by mutual consent at the Bar, restricted the ambit of their submissions and sought relief exclusively to the extent of electoral returns of ten polling stations i.e. polling stations No. 219, 224, 235, 239, 243, 269, 305, 326, 343 and 350. According to the Appellant, the valid votes secured by him were altered, and the particulars of the said polling stations were incorrectly recorded, and that the process of consolidation stood vitiated, and the outcome of the election was materially affected. For the purpose of examining the dispute between the parties concerning the abovementioned disputed polling stations, the following table, reflecting a consolidated comparison of the votes secured by the appellant and the Respondent, is placed on record to facilitate a precise assessment of the electoral outcome:

i. **KKK**= Khushal Khan Kakar ii. **SS**= Syed Sami Ullah

Sr. #	PS No. as per polling Scheme	PS No as per Form 48	KKK (Form-48)	SS (Form-48)	Exhibited by KKK (PO Form-45) through witnesses	Exhibited by ECP TW-1 KKK (ECP Form-45)	Exhibited by TW-2 KKK (Recount)	Exhibited by KKK witness's SS (PO Form-45)	Exhibited by TW-1 SS (ECP Form-45)	Exhibited by TW-2 SS (Recount)
1.	219	221	108	195	208 (Exh-14-C)	208(Exh-T/1-B)	208(Exh-T/2)	95	95	95
2.	224	226	0	0	62 (Exh-9-C)	62(Exh-T/1-E)	62 =	6	6	6
3.	235	237	201	219	301 (Exh-13-C)	301(Exh-T/1-II)	301 =	119	119	119
4.	239	241	205	355	305 (Exh-P/1-C)	305(Exh-T/1-L)	305 =	255	255	255
5.	243	245	111	304	211 (Exh-P/4-C)	211(Exh-T/1-M)	211 =	204	204	204
6.	269	271	41	162	141 (Exh-P/7-C)	141(Exh-T/1-Q)	141=	62	62	62
7.	305	306	184	215	284 (Exh-P/9-C)	284(Exh-T/1-V)	284 =	115	115	115
8.	326	327	147	478	247 (Exh-P/10-C)	247(Exh-T/1-W)	247 =	378	378	378
9.	343	344	44	395	144 (Exh-P/12-C)	144(Exh-T/1-AB)	144 =	195	195	195
10.	350	351	56	237	156 (Exh-P/8-C)	156(Exh-T/1-AC)	156 =	137	137	137

5. In the present case, the dispute relates to the counting and consolidation of the votes during the election where the POs of the aforementioned polling stations, prepared Forms-45 (result of count) and subsequently, the RO prepared Form-48 (consolidated statement of result) wrongly recording therein the

numbers of the aforesaid polling stations respectively as 221, 226, 237, 241, 245, 271, 306, 327, 344 and 351.

6. A glance over the above table reveals significant discrepancies between the results recorded in Form-45 issued at the polling stations and the figures reflected in Form-48 prepared by the RO. At polling station No. 219, Form-45 and the subsequent recount show that the Appellant secured 208 votes while the Respondent secured 95 votes. However, Form-48 records only 108 votes for the Appellant and 195 for the Respondent, indicating that 100 votes originally polled in favour of the Appellant were deducted and added to the Respondent's tally. At polling station No. 224, the Appellant secured 62 votes, and the Respondent 06 votes according to Form-45 and the recount, yet Form-48 shows both candidates as having received zero votes. At polling station No. 235, the Appellant secured 301 votes and the Respondent 119 votes as per Form-45 and recount, but Form-48 records 201 votes for the Appellant and 219 for the Respondent, again reflecting a transfer of 100 votes from the Appellant to the Respondent. The same pattern appears at polling station No. 239, where the Appellant's 305 votes and the Respondent's 255 votes, as recorded in Form-45 and the recount, were altered in Form-48 by reducing the Appellant's votes by 100 and increasing those of the Respondent by the same number. Likewise, at polling station No. 243, Form-45 and the recount show 211 votes for the Appellant and 204 for the Respondent, whereas Form-48 records 111 and 304 votes respectively, demonstrating the deduction of 100 votes from the Appellant and their addition to the Respondent. A similar anomaly occurred at polling station No. 269, where the Appellant secured 141 votes and the Respondent 62 votes according to Form-45 and the recount, yet Form-48 again reflects a reduction of 100 votes from the Appellant's tally with a corresponding increase in favour of the Respondent. Similar irregularities are evident at polling stations Nos. 305, 326 and 350, where 100 votes each were deducted from the Appellant and added to the Respondent in Form-48. Similarly, in the case of polling station No. 343, the number of votes deducted from the Appellant is 100 and correspondingly, 200 votes were added to the Respondent in Form-48. Had the votes recorded in Form-45 not been altered in

this manner in Form-48, the Appellant would have won the election by a margin of 1863 votes.

7. Examined from this perspective, the position emerging from the record admits of serious ambiguity. First, the primary record, namely Forms-45, consistently reflects the Appellant securing the majority of votes at the relevant polling stations. Second, the copies of Form-45 available on the official portal of the ECP corroborate the same figures. Third, it is only in the consolidated statement, namely the Form-48 prepared by the RO, that the figures stand altered and the electoral result changed. In such circumstances, the conclusion becomes inescapable that the alteration was not clerical in nature but substantive in effect, for it changed the electoral mandate. A vote is not a mere mechanical entry in a ledger. It is the sovereign expression of the people. Any alteration at the stage of consolidation is, therefore, not a trivial irregularity, but an intrusion into the will of the electorate.

8. Under the Elections Act, 2017 (***“the Act”***), read with Rule 81 of the Election Rules, 2017, the result of the count at each polling station is to be recorded in Form-45, prepared and signed by the PO immediately after counting, with copies supplied to the polling agents of the candidates. Rule 84 of the Election Rules, 2017 provides that on receipt of the count from all the POs of the constituency, the RO shall prepare the provisional consolidated statement of results for the constituency as required under Section 92, in Form-47, and then the provisional result is announced in terms of the said Section, immediately after announcement of the provisional results, the RO consolidates the final results following the procedure provided under Section 95 of the Act in Form-48 read with Rules 84-C and 85 of the Election Rules, 2017. The purpose of Section 95 of the Act is to ensure a transparent, accurate, and official final tabulation of votes after polling. It governs the consolidation of results by the RO. The main objectives of Section 95 of the Act are:

- i. To produce the official constituency-level result after combining all polling station results.
- ii. To ensure the process is conducted openly in the presence of candidates or their agents.
- iii. To cross-check and verify the results received from presiding officers (Form-45).

- iv. To build trust by ensuring that no unauthorized alternatives occur in vote counts.

Section 95 of the Act ensures that all the polling station results are carefully combined into a single, verified and publicly declared result, making it the decisive administrative step in determining the winner, while still allowing legal challenge afterwards. It is not disputed that Forms-45 were prepared and signed at the polling stations immediately after the counting of votes and that copies thereof were supplied to the polling agents of the contesting candidates. Forms-45 produced by the Appellant, as well as those available on the official portal of the ECP, and the result of the recount conducted by TW-2 are consistent with each other. However, the figures reflected in the Form-48 prepared by the RO materially diverge from the vote count recorded in Forms-45 in respect of the polling stations, detailed above. Significantly, the margin of victory declared in Form-48 does not correspond with the count emerging from Forms-45.

9. Form-45 constitutes the primary and contemporaneous record of votes counted at each polling station. It is prepared immediately after completion of the counting process, in the presence of candidates or their duly authorized agents, and, therefore, carries statutory sanctity. Form-48, by contrast, is merely a consolidated statement derived from the Forms-45. The RO exercises no adjudicatory authority to vary, substitute or recompute the result recorded in Forms-45, except to correct patent clerical mistakes apparent on the face of the record and strictly in accordance with law. The centrality of transparency and integrity in the electoral process has been emphasized by this Court in the *Workers Party Pakistan*¹. Likewise, in the case of *Muhammad Siddique Baloch*², it was held that non-compliance with mandatory provisions of the election law, where it materially affects the result of the election, vitiates the electoral process. The doctrine of material effect is, therefore, not an abstract formulation, but a question of demonstrable impact upon the final electoral outcome.

10. The RO is bound to strict statutory duties, including neutral and transparent conduct of the election. He must act as

¹ *Workers Party Pakistan v. Federation of Pakistan (PLD 2012 SC 681)*

² *Muhammad Siddique Baloch v. Jehangir Khan Tareen (PLD 2016 SC 97)*

an impartial officer responsible for maintaining the integrity of the electoral process. He must simply compile the result from Forms-45 into Form-48. He cannot modify or alter the votes unless a recount is ordered or an obvious clerical or arithmetical mistake is discovered and corrected transparently in accordance with law. He must also ensure that the record accurately reflects the votes polled. If the RO deduct votes from a candidate and adds them to another without lawful authority, as happened in the present case, the act constitutes tampering with election results, abuse of statutory process, and violation of election laws. Such conduct has materially affected the election results and undermined the democratic process. In the instant case, we observed that Forms-45 and Form-48 differ substantially; the discrepancy raises a presumption of manipulation. The Appellant had a clear lead of 1863 votes, according to Forms-45, and, after alteration in Form-48, his rival/ Respondent was declared the Returned Candidate. This deliberate alteration with election results attracts criminal liability against the concerned staff and officers, under the election laws.

11. The discrepancy between Forms-45 and Form-48, in the present case, indicates a serious irregularity. By reducing the votes of the Appellant and adding them to his rival/ the Respondent, the RO appears to have exceeded his statutory powers and possibly acted with *malafide* intent. Such an alteration, which completely reversed the election results, materially affects the outcome of the elections and undermines the integrity of the electoral process.

12. The controversy brought before this Court strikes at the very heart of Constitutional democracy and the sanctity of the ballot. In a Constitutional order founded upon representative governance, the legitimacy of public institutions ultimately rests upon the integrity, transparency and credibility of the electoral process. Where doubts arise as to whether the will of the electorate, as expressed at the polling stations, has been faithfully carried through the statutory process of consolidation, the matter assumes significance beyond the fortunes of individual candidates.

13. Article 218(3) of the Constitution of the Islamic Republic of Pakistan, 1973, enjoins upon the ECP the solemn and

non-negotiable duty to organize and conduct elections honestly, justly and fairly, and to vigilantly guard against corrupt practices. This Constitutional command is not directory, but mandatory. Any manipulation at the stage of vote consolidation erodes democratic legitimacy and shakes the foundations of the people's mandate. As this Court observed in *Imran Khan Niazi's* case,³ the lifeblood of democratic governance is transparency and fidelity to Constitutional norms. This constitutional safeguard finds expression in the Act. Section 139 provides that the validity of an election may be questioned only through an election petition filed by a contesting candidate, while Section 144 requires such petition to contain a precise statement of material facts and full particulars of any corrupt or illegal practice alleged, including the persons involved and the time and place of its commission. Section 156 further mandates that the Election Tribunal shall declare the election of the returned candidate void where the result has been procured or induced by corrupt or illegal practices, or where such practices have been committed with the consent or connivance of the candidate or his election agent. The law also distinguishes between corrupt and illegal practices. While illegal practices are prohibited irrespective of *mens rea*, corrupt practices such as bribery and treating require proof of a corrupt inducement to voters to vote or refrain from voting. Such *mens rea* may be inferred from the surrounding circumstances of the case. In such matters, the Court must remain mindful that ordering a fresh election is a remedy of last resort, given the substantial cost, delay, and disruption to representation it entails.

14. An administrative officer cannot be allowed to substitute his arithmetic for the sovereign will of the electorate. Where the true count of votes is evident from uncontroverted Forms-45, duly acknowledged by the ECP, no shadow can be cast upon their authenticity. This Court is not powerless; where the evidence conclusively demonstrates that the Appellant secured a lawful majority, the proper course is not to direct a re-poll, but to declare the Appellant duly elected. The law neither condones manipulation nor permits its fruits to endure. Tampering at the consolidation stage by the RO is even more perilous than

³ *Imran Ahmad Khan Niazi v. Mian Muhammad Nawaz Sharif* (PLD 2017 SC

irregularities at the polling station, for it occurs at the final stage of democratic determination. It transforms an administrative officer into a lawful determinant of political destiny, usurping the sovereign will of the electorate.

15. Upon examination of the record, we have no hesitation to conclude that the RO acted beyond lawful authority in altering the arithmetic basis of consolidation. Such an alteration materially affected the result of the election. Therefore, by allowing Civil Appeal No. 1151/2025, the impugned judgment of the Tribunal is set aside. The Election Petition filed by the Appellant is accepted. The impugned notification issued in favour of the Respondent/returned candidate, which cannot be sustained, is set aside. Based on verified Forms-45, forming part of the record, the Appellant, having secured the majority of valid votes, is declared as the returned candidate from the Constituency NA-251, Sherani-cum-Zhob-cum-Killa Saifullah. The ECP shall issue a Notification in this regard. Whereas, the Civil Appeal No. 1152/2025 filed by the Respondent is partly allowed to the extent of setting aside the judgment dated 24.11.2025 of the Election Tribunal-III, Balochistan, Quetta, and the prayer to the extent of dismissing the Election Petition No. 33/2024 is declined. The listed CMAs are also disposed of.

16. Before parting with this judgment, we deem it necessary to observe that electoral functionaries are trustees of the people's mandate and custodians of the integrity of the electoral process. Any deviation from neutrality or departure from the statutory framework imperils not merely the outcome of a particular election, but the democratic order itself. The discharge of electoral duties demands scrupulous adherence to law, transparency in action, and an unwavering commitment to impartiality, for it is through these principles that public confidence in the electoral process is sustained and the sovereign will of the electorate is preserved.

17. These are the detailed reasons for our short order of even date, reproduced below:

"For the reasons to be recorded later, the following order is made: -

- i. C.A.No.1151/2025 is allowed and, as a result, the judgment dated 24.11.2025

passed by the Election Tribunal-III, Balochistan, Quetta, is set aside.

- ii. *The Election Petition No.33/2024 brought by Khushal Khan Kakar is accepted, and as a result, Notification No.F.2(5)/2024-Cord(7) dated 18.02.2024 regarding the election for NA-251 Sherani-cum-Zhob-cum-Killa Saifullah is set aside.*
- iii. *C.A.No.1152/2025 stands partially allowed to the extent of setting aside the judgment dated 24.11.2025 of the Election Tribunal-III, Balochistan, Quetta, and prayer to the extent of dismissing the Election Petition No.33/2024 is declined.*
- iv. *The Election Commission of Pakistan is directed to forthwith notify Khushal Khan Kakar as a returned candidate from NA-251 Sherani-cum-Zhob-cum-Killa Saifullah for general elections held in the month of February, 2024”.*

Islamabad

27.02.2026

“APPROVED FOR REPORTING”

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